

BEFORE THE FEDERAL MARITIME COMMISSION

CHINA UNITED LINES, LTD,

Complainant,

v.

AMAZON.COM SERVICES LLC,

AMAZON LOGISTICS INC.,

and

BEIJING CENTURY JOYO COURIER SERVICE CO.,
LTD.,

Respondents.

DOCKET NO. 25-04

**RESPONDENTS' RESPONSE TO COMPLAINANT'S
MOTION FOR RULING ON PENDING MOTIONS TO COMPEL**

Respondents Amazon.com Services LLC, Amazon Logistics, Inc., and Beijing Century Joyo Courier Service Co., Ltd. provide this Response to Motion of Complainant China United Lines, Ltd. (“China United”) asking Your Honor to rule on the pending motions to compel on or before April 3, 2026. The Motion is unnecessary as there is no reason to believe the motions will not be ruled on by that date. China United’s basic argument is that rulings on motions it chose to file in this proceeding are necessary for it to pursue its contract case in the Southern District of New York—where it chose not to file any of its motions. China United fails to inform Your Honor that it presented this same argument to Judge Castel, who is presiding over that case, and that Judge Castel rejected it outright: if the information was needed in that case the motions should have been filed there. Attach. A, Rubinstein Decl. ¶¶ 7-10. China United now asks Your Honor to do what Judge Castel has already refused to do: tie the discovery motions here to the schedule in the Southern District case.

China United's Motion raises serious questions about how it has pursued this entire case, which it did not file until well over a year after it had filed its contract action in the Southern District, and many months after it noticed a contractual arbitration in Shanghai. As Respondents have noted previously, much of the discovery China United seeks in its motions here is not related to the one narrow claim remaining in this proceeding, which requires a showing of fraud, deceit, or concealment to obtain lower rates. China United now all but concedes as much in arguing that a ruling is needed here to support its contract claims in the Southern District case. *See* Motion, *passim*. China United should have filed its motions in the Southern District if the discovery was needed there.¹ Nor is it anyone's fault but China United's that it waited, in some cases months, to file these motions until late in the discovery period, including one motion filed in the last hour of the period and one filed after it expired.

China United also improperly seeks to use its Motion to reargue matters already submitted. Your Honor has already allowed China United a reply on one of its motions, and has under consideration a motion for a reply as to a second. China United's improper efforts to reargue its positions here should be disregarded. China United's extended argumentation is also entirely beside the point. It discusses its contractual claims at some length, Motion at 2-4, but those are not matters before Your Honor. *See, e.g., id.* at 4 (arguing that the material is relevant to "Amazon's interpretation of these [contract] provisions," and that China United would be "severely prejudiced should it be unable to use this information in the SDNY Case"). China United states that it "had

¹ China United attempts to excuse this failure by referring to the parties' stipulation "to the presentation of documents, interchangeably, in both the FMC matter and the SDNY Case." Motion at 2. That stipulation governs the use of produced documents across proceedings and says nothing about the appropriate forum to file motions to compel. It could not in any event impose an obligation on Your Honor to expedite rulings on discovery issues presented in aid of a prior parallel contract action that China United chose to litigate in another forum.

previously maintained every reasonable expectation that trial would not be set until a much later date [than June 15, 2026],” *id.* at 3 n.1, but this unsupported assertion is directly at odds with its counsel’s repeated questioning of Amazon witnesses as to whether they would be free for a trial this summer. *See, e.g.*, Attach. A, Rubinstein Decl. Ex. 4, Klosky Dep. at 22:6-11 (“it looks like the Southern District of New York case might be going to trial, you know, sometime in the summertime...”); Ex. 5, Moore Dep. at 39:16-25.

China United also suggests for the first time that its privilege arguments are supported by a decision in an entirely separate case, *Federal Trade Comm’n v. Amazon.com, Inc.*, No. 2:23-cv-00932-JHC, 2025 WL 1907413 (W.D. Wash. July 10, 2025). This argument has not been timely or properly presented and is entirely without merit. That case involved entirely different facts, different personnel, and a different subject matter. Moreover, Respondents’ discovery in this proceeding has complied with the directions of the court in that case, and Respondents were mindful of those directions when producing discovery and preparing a privilege log in this case. The decision China United cites ordered no additional production or further amendment to Amazon’s privilege log, and the case provides no basis for any assertion of the inadequacy of Amazon’s privilege assertions in this proceeding, which Respondents have fully justified in prior briefing. Respondents have demonstrated in the appropriate filing that the assertions of privilege are proper and properly supported, and that the support for their assertions of privilege go beyond what China United provided in support of its own. *See* Respondents’ Opposition (Feb. 23, 2026); Scanlon Decl. Exs. A-D.

Respondents thus respectfully submit that China United’s Motion should not have been filed, as it seeks to involve Your Honor in matters not properly presented here, and misrepresents those matters. Judge Castel has already refused China United’s attempt to delay the action before

him because of the asserted relevance of discovery sought here. Attach A, Rubinstein Decl. ¶¶ 7-10. And given China United's failure to provide any evidence in support of the showing it must make of fraud, deceit, or concealment to obtain lower rates, this case will be suitable for summary disposition regardless of the outcome of the pending motions, which largely seek information having nothing to do with China United or any representations made to China United. Indeed, despite China United's claims of supposed discovery lapses by Respondents, it is China United itself that *just two weeks ago* finally provided highly relevant documents that should have been produced months earlier.

Respectfully submitted,

___/s/___ John Longstreth___

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March 20, 2026

CERTIFICATE OF SERVICE

I certify that on this 20th day of March, 2026, the aforesaid Response to Complainant's Motion for Ruling on Pending Motions to Compel has been filed with the Secretary for the public docket, with a copy to judges@fmc.gov, and served on the following counsel of record, as provided by the Initial Order in this proceeding.

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/ s / John Longstreth
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